

STATE OF NEW YORK

1847--A

Cal. No. 141

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. COMRIE, BROUK, FERNANDEZ, GALLIVAN, MARTINS, MAY, OBERACKER, PALUMBO, RHOADS, SCARCELLA-SPANTON, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Rules -- reported favorably from said committee, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law, in relation to requiring evidence and consideration of the economic impact of utility rates and charges by the public service commission

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 119-f to read as follows:

3 § 119-f. Economic impact assessment. 1. Prior to approving any major
4 increase in rates or charges proposed by a public utility company or
5 municipality, the commission shall consider the economic impact of any
6 such proposed increase in the rates or charges upon consumers in the
7 area served by the company or municipality proposing such increase. Such
8 consideration shall be in relation to any determination made by the
9 commission under subdivision one of section sixty-five, subdivision one
10 of section seventy-nine, subdivision one of section eighty-nine-b, and
11 subdivision one of section ninety-one of this chapter. For purposes of
12 this subdivision, "major increase" shall mean an increase in the rates
13 and charges which would increase the aggregate revenues of the applicant
14 more than the greater of three hundred thousand dollars or two and one-
15 half percent.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. In assessing economic impact the commission shall, with respect to
2 each public utility company or municipality's service territory and
3 customers, consider, at a minimum:

4 a. unemployment data, income information and the number of persons
5 receiving social services assistance;

6 b. the average monthly utility bill for each class of customers who
7 would be affected by an increased rate or charge and the estimated
8 increased utility bill for each such class of customers; and

9 c. the latest federal bureau of labor statistics' consumer price index
10 figures indicating the average cost of living and the average cost of
11 fuel and utilities for the nation and, if possible for the state or the
12 service territory affected by such increased rate or charge.

13 § 2. This act shall take effect immediately and shall apply to each
14 request for increased rates or charges submitted on or after the effec-
15 tive date of this act.